



CHAPTER lxxiii.

An Act to authorise the Metropolitan Railway Company A.D. 1911.
to construct a widening of their railway and a subway
for foot passengers and for other purposes.

[18th August 1911.]

WHEREAS it would be of public and local advantage that the Metropolitan Railway Company (in this Act referred to as "the Company") should be empowered to widen their railway and construct a new station at or near Mount Pleasant and a subway for foot passengers in connexion with their Edgware Road Station both in the administrative county of London and to acquire additional lands for those purposes:

And whereas it is expedient that the other powers contained in this Act should be conferred upon the Company:

And whereas plans showing the additional land required or which may be taken compulsorily for the purposes or under the powers of this Act such plans showing the lines and situation of the widening subway and works authorised by this Act and sections showing the levels of such works with a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk of the peace for the administrative county of London and are in this Act respectively referred to as "the deposited plans sections and book of reference":

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

A.D. 1911. and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited for all purposes as the Metropolitan Railway Act 1911.

Act divided into Parts. 2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—New Works.

Part III.—Finance.

Part IV.—Miscellaneous.

Incorporation of general Acts. 3. The following Acts and parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say):—

The Lands Clauses Acts;

The Railways Clauses Consolidation Act 1845;

The Companies Clauses Consolidation Act 1845;

Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863;

The Companies Clauses Act 1863;

The Companies Clauses Act 1869.

Interpretation. 4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction:

And in this Act—

“The Company” means the Metropolitan Railway Company;

“The Act of 1905” means the Metropolitan Railway Act 1905;

“The Act of 1906” means the Metropolitan Railway Act 1906;

“The widening” and “the subway” mean respectively the widening and works and the subway for foot passengers by this Act authorised.

PART II.

A.D. 1911.

NEW WORKS.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and situations shown upon the deposited plans and according to the levels shown upon the deposited sections a widening of their railway with a new station thereon at Mount Pleasant and a subway for foot passengers herein-after respectively described with all necessary and convenient platforms shafts lifts stairways subways escalators approaches inclines and other accommodation or conveniences connected therewith and may subject as aforesaid enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference as may be required for those purposes (namely):—

Power to
Company to
construct
works.

(1) A widening 6·06 chains in length situated wholly in the parish of St. James Clerkenwell in the metropolitan borough of Finsbury in the administrative county of London commencing at a point in Farringdon Road 42 yards or thereabouts measured in a south-easterly direction along the centre of the said road from the point of intersection of Attneave Street with the said Farringdon Road and terminating at a point in the said Farringdon Road 175 yards or thereabouts measured in a south-easterly direction along the centre of the said road from the said point of intersection and a new station thereon:

(2) A subway situated wholly in the parish and metropolitan borough of St. Marylebone in the administrative county of London commencing on the east side of Edgware Road at the front wall of No. 264 Edgware Road and terminating at the north-west corner of the Edgware Road Station of the Company.

6. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for
compulsory
purchase of
lands.

7. If the works by this Act authorised are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for
completion
of works.

A.D. 1911.

Power of
deviation.

8. In constructing the widening and the subway it shall be lawful for the Company subject to the provisions of this Act to deviate vertically from the levels thereof as marked on the deposited sections to any extent upwards not exceeding two feet and downwards to such an extent as may be found necessary or convenient.

Power to
open surface
of certain
streets.

9. Subject to the provisions of this Act the Company may stop up temporarily and enter on and open up the surface of Farringdon Road Rosebery Avenue Exmouth Street and Burne Street within the limits of deviation shown on the deposited plans.

Provisions
as to cellars
under streets
not refer-
enced.

10. Nothing in this Act shall authorise the Company to enter upon take or use (except by agreement) any cellar or vault or other part of the structure of a building in or under any street belonging to or connected with any building unless such cellar or vault or part of the structure of a building or the building with which it is connected or of which it forms part is described or referred to in the deposited book of reference.

Underpin-
ning of
houses near
works.

11. And whereas in order to avoid in the execution and maintenance of any works authorised by this Act injury to the houses and buildings within one hundred feet thereof it may be necessary to underpin or otherwise strengthen the same Therefore the Company at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as herein-after provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):—

(1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened :

(2) Each such notice if given by the Company shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Company :

(3) If any owner lessee or occupier of any such house or building or the Company as the case may require

shall within seven days after the giving of such notice give a counter notice in writing disputing the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Board of Trade and the Arbitration Act 1889 shall apply to the reference: A.D. 1911.

- (4) The arbitrator shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Company may and shall proceed forthwith so to underpin or strengthen the said house or building:
- (5) The Company shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this section:
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the arbitrator the Company shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof:
- (7) Nothing in this section contained nor any dealing with any property in pursuance of this section shall relieve the Company from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act:

A.D. 1911.

(8) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions of the Lands Clauses Acts:

(9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

Owners may be required to sell parts only of certain lands and buildings.

12. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or any one or more of them are herein-after included in the term “the owner” and the said properties are herein-after referred to as “the scheduled properties”:

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:

(3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as “the tribunal”) shall in addition to the other questions required to be determined by it determine whether

the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :

A.D. 1911.

- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as

A.D. 1911.

aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

[92] The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Company
may acquire
easements
only under
lands &c.
and purchase
cellars &c.

13. Where any works are to be situated below the surface of the lands described in the Second Schedule to this Act the Company shall not be required to take the lands described in that schedule or any part of the surface of any of such lands or any houses buildings and premises thereon or any cellar vault arches or other construction held or connected therewith but the Company may instead of purchasing and taking the same purchase and take an easement or right of using the subsoil and under surface of any such lands and if the Company require to take use pull down or open any such cellar vault arches or other construction they may purchase take and use and the owners of and other persons interested in any such vault cellar arches or other construction shall sell the same for the purposes of such works and the purchase of any such easement or of any such cellar vault arch or other construction shall not in any case be deemed the purchase of a part of a house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845 But nothing in this section contained nor any dealing with the lands in pursuance of this section shall relieve the Company from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 and every case of compensation to be ascertained under this Act shall be ascertained and determined according to the provisions contained in the Lands Clauses Acts.

14. Notwithstanding anything shown on the deposited plans or contained in this Act the Company shall not except with the consent in writing of the Postmaster-General enter upon take or use or purchase or take any easement or right of using the subsoil and under-surface of the properties numbered on the said plans 24 25 26 and 27 in the parish of St. James Clerkenwell in the metropolitan borough of Finsbury or any part thereof respectively.

A.D. 1911.

For protec-
tion of
Postmaster-
General.

15. The following provisions shall unless otherwise agreed have effect for the protection of the London County Council (herein-after called "the council") (that is to say):—

For protec-
tion of Lon-
don County
Council.

- (1) Notwithstanding anything contained in this Act sections 13 14 and 16 of the Metropolitan Railway Act 1898 are incorporated with and form part of this Act and shall extend and apply to the lands which the Company are by this Act authorised to acquire and to any works matters or things by this Act authorised as fully and effectually to all intents and purposes as if those provisions had been repeated and expressly re-enacted in this Act with reference thereto :
- (2) The provisions of the London Building Acts 1894 to 1909 and any Act amending the same shall except so far as the same may be expressly varied by this Act apply to the execution by the Company under the powers of this Act of any works in the administrative county of London (herein-after called "the county") and the Company shall save as aforesaid be entitled to the benefit of any special exemptions in favour of railway companies in the said London Building Acts contained but no such exemptions shall be deemed to apply to such part of any building as shall be used or intended to be used for other than railway purposes :
- (3) It shall not be lawful for the Company under the powers of this Act to encroach upon any part of the surface of any street or footway in the county or without the consent of the council to erect any building or structure beyond the general line of buildings in any street part of a street place or row of houses in the county :

A.D. 1911.

- (4) Before the Company commence the construction of the widening to be constructed under the powers of this Act beneath the surface of Rosebery Avenue and Farringdon Road they shall submit for the approval of the council plans sections and specifications thereof. If the council shall not within twenty-eight days after the said plans sections and specifications shall have been so submitted to them object to the same by notice in writing served upon the Company the said plans sections and specifications shall be deemed to have been approved for the purposes of this Act and if the council make any such objection then unless the said plans sections and specifications be agreed between the Company and the council within twenty-one days after the service of such objection any matter in difference shall be settled by arbitration as herein-after provided;

The Company shall at all times maintain the widening under or within fifty feet of any subway for pipes tramway or other works the property of the council in substantial repair and good order and condition to the reasonable satisfaction in all respects of the council and if and whenever the Company fail so to do the council may make and do in and upon as well the works and lands of the Company as their own lands and works all such works and things as the council may reasonably think requisite and the sum from time to time certified by the council to be the reasonable amount of the council's expenditure in that behalf shall be repaid to the council by the Company. The council shall at all reasonable times have free access to the works of the Company where the widening shall pass under or within fifty feet of any part of the property of the council as aforesaid and for the distance above mentioned and every facility shall be afforded them for the inspection thereof and every reasonable notice which they may give touching any defect or want of repair shall immediately or as soon as possible be complied with by the Company;

If during and by the execution of the widening any part of the property of the council as aforesaid

shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do the council may make good the same and recover the costs thereof against the Company ;

A.D. 1911.

The Company shall not in making and maintaining and working or using the widening in any manner obstruct hinder or interfere with the free uninterrupted and safe user of the tramways of the council or any traffic on such tramways and if at any time hereafter the free uninterrupted and safe user of the said tramways or any traffic thereon shall be obstructed hindered or interfered with contrary to this enactment the Company shall pay to the council such damages as the council shall sustain by reason thereof ;

All reasonable fees costs charges and expenses in respect of any of the matters in this subsection contained shall be borne and on demand paid by the Company and during the construction renewal or repair of the widening under and adjacent to the property of the council as aforesaid the Company shall bear and on demand shall pay to the council the expense of the employment by them of a sufficient number of inspectors or watchmen to be appointed by them for watching the property of the council as aforesaid or any part thereof and the works and conveniences connected therewith and for preventing as far as may be all interference obstruction danger and accident arising from any of the operations of the Company or from acts or defaults of the contractors of the Company or of any person in their employ or otherwise ;

Notwithstanding anything in this Act contained the Company shall be responsible for and make good to the council all costs losses damages and expenses which may be occasioned to the council or to the property of the council as aforesaid or to any person using the same or otherwise by reason of the construction maintenance or failure of the widening or of any act or omission of the Company or of any person in their employ or of their contractors or

A.D. 1911.

others and the Company shall effectually indemnify and hold harmless the council from all claims and demands upon or against them by reason of such construction maintenance or failure and of any such act or omission ;

Any dispute or difference which may arise between the council and the Company with respect to the provisions of this subsection or in any way arising thereout shall be settled by arbitration by a civil engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers on the application of the Company and the council or either of them :

(5) The entrances and exits to and from the proposed new station and subway shall be so designed and of such extent as to secure the least practicable inconvenience to the public traffic in the adjoining streets and before the works are commenced plans of such entrances and exits from and to such streets shall be submitted for the approval of the council. If the council shall not within twenty-eight days after the said plans shall have been so submitted to them object to the same by notice in writing served upon the Company the said plans shall be deemed to have been approved for the purposes of this Act and if the council make any such objection then unless the said plans be agreed between the Company and the council within twenty-one days after the service of such objection any matter in difference shall be settled by an arbitrator to be appointed on the application of the Company and the council or either of them by the Board of Trade :

(6) The Company shall carefully preserve and remove all objects of geological or antiquarian interest discovered by them in the execution of the works by this Act authorised and subject to the rights of the Crown and except so far as the same may be proved to be the property of any other person any such objects shall be subject to the disposal of the council in such manner as the council may resolve and the Company shall use all reasonable means for securing compliance with the provisions of this subsection.

16. For the protection of the council of the metropolitan borough of Finsbury (herein-after called "the Finsbury Council") the following provisions shall have effect:—

A.D. 1911.
For pro-
tection of
metropolitan
borough of
Finsbury.

- (1) The Company shall make full compensation to the Finsbury Council for any damage to or subsidence of any sewer drain public convenience or work belonging to the Finsbury Council in or under any street road or footway vested in them as the road authority and for any damage to or subsidence of any such street road or footway in or under which any part of the widening or works by this Act authorised may be executed by the Company which may be caused by or in consequence of the exercise of any powers under this Act or by any act or default of the Company their contractors servants or agents:
- (2) The Company shall not deposit any subsoil or materials anywhere within the said borough so as to cause any obstruction to any persons lawfully using the roads or footways within the borough:
- (3) The Company shall not where any house or building has been demolished by them leave the flanks thereof or of any adjoining structures in an unsightly condition after the completion of the works:
- (4) The Company shall before commencing any works or boring through any part of the surface of a street in the said borough give twenty-four hours' previous notice in writing to the Finsbury Council of their intention to commence such borings and shall so far as is reasonable comply with the requirements of the surveyor of the Finsbury Council as to the position of such borings:
- (5) It shall not be lawful for the Company to place any hoarding on any part of any public way in the borough of Finsbury except for such period as may be necessary during the execution of the works by this Act authorised and then only in such manner and for such purpose as shall be reasonably necessary for the purpose of the said works and no such hoarding shall be erected except under the provisions of the Metropolis Management Act 1855 or any amendment thereof:

A.D. 1911,

- (6) The Finsbury Council may from time to time appoint at their own cost a competent engineer architect or surveyor who may from time to time inspect the works within the said borough during construction and shall give notice to the Company of such appointment and the Company shall give to such engineer architect or surveyor all necessary facilities for such inspection.

For protection of
St. Mary-
lebone
Borough
Council.

17. Notwithstanding anything contained in this Act the following provisions for the protection and benefit of the mayor aldermen and councillors of the metropolitan borough of St. Marylebone (in this section called "the council" and "the borough" respectively) shall except so far as may be otherwise agreed in writing between the council and the Company apply and have effect (that is to say):—

- (1) If the subway by this Act authorised shall be constructed under Burne Street so as to leave less than three feet between the crown of the subway and the surface of the street the Company will by means of a trough of such dimensions as may be agreed between the Company and the council or failing agreement as may be determined by arbitration provide for the carrying across the subway of such of the existing or future sewers drains electric lines and other pipes of the council in or under Burne Street as the council may desire to have carried above the subway so that the bottom of such sewers drains lines or pipes shall be not less than three feet below the surface of the said street:
- (2) All works authorised by this Act under or in any way affecting Burne Street or any sewers drains electric lines or other works of the council thereunder shall be executed under the superintendence and to the reasonable satisfaction of the council and in accordance with plans and sections previously submitted to and reasonably approved by the council:
- (3) The Company shall not at one and the same time stop up both footways of Burne Street and shall with all practicable speed after any part of Burne Street is stopped up complete the works on account of which they stopped up such street and fill in the ground

and restore the surface thereof to as good a condition as it was immediately before it was broken up and for the period of twelve months from the reinstatement thereof keep such part of the said street as shall be so broken up in repair to the reasonable satisfaction of the council:

- (4) The Company shall make full compensation to the council for any damage to or subsidence of Burne Street or any sewers drains electric lines or works belonging to the council in or under that street which may be caused by or in consequence of the exercise by the Company of any of the powers of this Act or any act or default of the Company their contractors servants or agents:
- (5) The works of the Company shall be constructed and maintained by them of sufficient strength to support the traffic over and along Burne Street beneath which the works are constructed:
- (6) If by reason of the exercise of any of the powers of this Act the cost of the construction or maintenance of any sewer drain electric line or other works of the council in or under Burne Street shall be increased the Company shall bear the extra cost of such construction or maintenance rendered necessary by the existence of the Company's works such extra cost in case of difference to be determined by arbitration and the Company shall afford every reasonable facility for the construction or maintenance of any such sewer drain electric line or other works by the council:
- (7) It shall be lawful for the surveyor or other officer of the council duly appointed for the purpose at all reasonable times to enter upon and inspect any works in or under Burne Street executed under the powers of this Act during the execution thereof and the Company shall give to such surveyor or officer all reasonable facilities for such inspection:
- (8) If in the making of the subway by this Act authorised any of the roads repairable by the council shall be damaged by reason of extraordinary traffic thereon then any extra expense which may be thereby incurred by the council for the repair of any such

A.D. 1911.

roads shall on demand be paid to the council by the Company such extra expense in case of difference to be determined by arbitration:

(9) In the construction of the subway the Company shall not without the consent of the council permit or suffer any cart or wagon or other vehicle employed in removing from or bringing to the said works any soil materials or plant to be loaded or unloaded in any part of any public thoroughfare within the borough other than and except Burne Street:

(10) Any difference which may arise between the council and the Company under the provisions of this section shall unless otherwise agreed be referred to and determined by an engineer or other fit person to be appointed by the President for the time being of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

General provisions for protection of gas water hydraulic power and electric companies and public bodies.

18.—(1) Before commencing any works by this Act authorised in or under any street in or under which any mains pipes syphons plugs wires or other works (herein-after called “apparatus”) of the Metropolitan Water Board the Gas Light and Coke Company the London Hydraulic Power Company or the County of London Electric Supply Company Limited whose mains pipes wires or other works may be interfered with during the construction of the widening and subway by this Act authorised (each herein-after referred to as “the protected company”) are situate the Company shall deliver to the protected company plans sections and descriptions of all works so proposed to be executed describing the proposed manner of executing the same and such plans sections and descriptions shall be delivered to the protected company at least twenty-one days before the commencement of any such work.

If it should appear to the protected company that such works will interfere with or endanger any of their apparatus or impede the supply of water gas hydraulic power or electric energy the protected company may give notice to the Company to lower or otherwise alter the position of such apparatus or to support the same or to substitute temporarily or otherwise other apparatus in such manner as may be considered necessary and to lay or place under any apparatus cement concrete or

other like substance and any difference as to the necessity of such lowering alteration support substitution laying or placing cement concrete or other like substance (herein-after called "protective works") shall be settled as herein-after provided and all such protective works shall save as herein-after provided be done and executed by and at the expense of the Company but to the satisfaction and under the superintendence of the engineer of the protected company and the reasonable costs charges and expenses of such superintendence shall be paid by the Company And if any protected company by notice in writing to the Company within fourteen days after the receipt by them of notice of the intended commencement by the Company of any such works of the Company so require the protected company may by their own engineer or workmen do and execute protective works so far as they affect the apparatus of the protected company and the Company shall on the completion thereof pay to the protected company the reasonable expenses incurred by them in the execution of such protective works.

(2) In the event of the plans sections and descriptions so delivered to the protected company as aforesaid not being objected to within fourteen days from such delivery the works shown and described thereon shall be executed in strict accordance therewith.

(3) The protected company may if they deem fit employ watchmen or inspectors to watch and inspect the works whereby any apparatus of the protected company will be interfered with or affected during construction repair or renewal and the reasonable wages of such watchmen or inspectors shall be borne by the Company and be paid by them to the protected company.

(4) If any interruption in the supply of water gas hydraulic power or electric energy by the protected company shall without the written authority of the protected company be in any way occasioned either by reason of the exercise of the statutory powers conferred upon the Company or by the act or default of the Company or of any of their contractors agents workmen or servants or any person in the employ of them or any or either of them the Company shall forfeit and pay to the protected company for the use and benefit of the protected company a sum not exceeding ten pounds for every hour during which such interruption shall continue.

A.D. 1911.

(5) The expense of all repairs or renewals of any apparatus of the protected company or any works in connexion therewith which may at any time hereafter be rendered necessary either by reason of the exercise of the statutory powers conferred upon the Company or by the acts or defaults of the Company their contractors agents workmen or servants or any person in the employ of them or any or either of them or rendered necessary by reason of any subsidence resulting from the works of the Company whether during the construction of the widening and subway and works or at any time thereafter shall be borne and paid by the Company.

(6) It shall be lawful for the protected company and the engineers workmen and others in their employ at all times when it may be necessary to enter upon the lands works and premises of the Company at any point or place where there is existing apparatus of the protected company and to do all such works in and upon such lands and premises as may be necessary for repairing maintaining or removing or replacing or extending such apparatus under or over the same lands and premises Provided always that in so doing the protected company their engineers or workmen or others in the employ of the protected company shall not interrupt the user of any of the works of the Company by this Act or any other Act authorised And provided also that the protected company shall make good and reimburse to the Company all damages to such works occasioned by the exercise of the powers by this section reserved to the protected company.

(7) If any difference shall arise with respect to any matter under this section between the Company and the protected company or their respective engineers or concerning any plans sections or descriptions to be delivered to the protected company under the foregoing provisions of this section the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of the Company and the protected company or either of them by the Board of Trade and the costs of such arbitration shall be borne and paid as the arbitrator shall direct and in settling any question under this section an arbitrator shall have regard to any duties or obligations which the protected company may be under in respect of their apparatus and may if he thinks fit require the Company to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the protected company's apparatus is used.

19. If notwithstanding the provisions of the section of this Act of which the marginal note is "Power of deviation" the subway by this Act authorised shall be constructed under Burne Street so as to leave less than three feet between the crown of the subway and the surface of the street the Company will by means of a trough of such dimensions as may be agreed between the Company and the Metropolitan Water Board (herein-after referred to as "the Board") or failing agreement as may be determined by arbitration as provided by subsection seven of the section of this Act of which the marginal note is "General provisions for protection of gas water hydraulic power and electric companies and public bodies" for settlement of any difference arising under that section provide for the carrying of the mains or pipes of the Board in or under Burne Street across the subway so that the bottom of such mains or pipes shall be not less than three feet below the surface of the said street.

A.D. 1911.
For protec-
tion of
Metropolitan
Water
Board.

20. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway or footpath under which the works by this Act authorised may be constructed except so far as the level of such road highway or footpath is permanently altered.

Company
not liable to
repair sur-
face of road
level of
which is not
permanently
altered.

21. The provisions of section 36 of the Act of 1906 shall extend and apply to this Act as fully and effectually as if that section had been re-enacted in this Act.

Incorporating
provisions of
section 36 of
Act of 1906
with this Act.

22. The Company and their surveyors officers and workmen and any person duly authorised in writing under the hand of the secretary of the Company may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands and buildings by this Act authorised to be taken and used as aforesaid or any of them for the purpose of inspecting surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

Power to
enter upon
property for
survey and
valuation.

23. The Company may retain hold and use for such purposes as they may think fit any lands and buildings acquired by them or on their behalf under the authority of this Act or any

Power to
deal with
surplus
lands.

A.D. 1911. part thereof and which lands may not be required for the purposes of the undertaking of the Company and any such land shall not be deemed to be land not required for the purposes of such undertaking within the meaning of the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands.

PART III.

FINANCE.

Power to
issue stock
warrants and
debenture
stock certi-
ficates to
bearer.

24. The Company may with respect to the whole or any portion of fully paid up stock or debenture stock created or to be created by them and subject to such regulations as may from time to time be made by the Company issue under their common seal warrants and certificates (herein-after severally referred to as a "stock warrant to bearer" and a "debenture stock certificate to bearer") stating that the bearer of the warrant or certificate is entitled to the stock or debenture stock as the case may be therein specified and may provide by coupons whether attached to the warrant or certificate or not for the payment of dividends or interest as the case may be on the stock or debenture stock included in the warrant or certificate :

Provided always that nothing in this Act contained shall empower the Company to issue to the holder of any stock issued prior to the passing of this Act a stock warrant to bearer for stock held by him without first obtaining his consent or to issue to a registered holder of debenture stock issued prior to the passing of this Act a debenture stock certificate to bearer for the debenture stock held by him without first obtaining his consent in writing.

Effect of
stock war-
rant and de-
benture stock
certificate.

25. A stock warrant to bearer and a debenture stock certificate to bearer shall entitle the bearers thereof respectively to the stock or debenture stock therein specified and such stock or debenture stock may be transferred by delivery of the warrant or certificate.

Entries in
register on
issue of stock
warrants or
debenture
stock cer-
tificates.

26. On the issue of a stock warrant to bearer or a debenture stock certificate to bearer in respect of any portion of stock or debenture stock the Company instead of making in the register of stockholders or register of debenture stock holders with reference to such portion of stock or debenture

stock the entries provided for by sections 9 and 10 of the Companies Clauses Consolidation Act 1845 or section 28 of the Companies Clauses Act 1863 shall strike out of such register of stockholders or register of debenture stockholders as the case may be the name of the person (if any) then entered therein as holding such stock or debenture stock as the case may be and shall enter in the registers the following particulars:—

A.D. 1911.

- (i) The fact of the issue of the stock warrant to bearer or debenture stock certificate to bearer:
- (ii) A statement of the amount of the portion of stock or debenture stock as the case may be specified in the warrant or certificate:
- (iii) The date of the issue of the warrant or certificate.

The provisions of the Companies Clauses Consolidation Act 1845 as to the register of holders of shares and as to certificates of shares and transfer and transmission of shares and the provisions of the Companies Clauses Act 1863 as to certificates and registration of debenture stock shall not apply in the case of a stock warrant to bearer or a debenture stock certificate to bearer respectively.

27. The bearer of a stock warrant to bearer or a debenture stock certificate to bearer shall—

Registration of stock and debenture stock on surrender of warrant or certificate.

- (A) On surrendering the warrant or certificate with all coupons issued in respect thereof and for the time being outstanding for cancellation;
- (B) Complying with such regulations as may from time to time be made by the Company for the purpose of enabling the Company to ascertain the name address and description of the bearer and for obtaining a specimen of his signature;
- (C) Paying to the Company all stamp or other Government duties (if any) which may be payable by the Company in consequence of the surrender;
- (D) Paying to the Company such fee not exceeding five shillings as the Company may prescribe;

be entitled to have his name entered in the register of stockholders or in the register of debenture stockholders as the case may be and the Company shall be responsible for any loss incurred by any person by reason of the Company entering in the register the name of any bearer of a stock warrant to

A.D. 1911. bearer or a debenture stock certificate to bearer in respect of the portion of stock or debenture stock therein specified without the warrant or certificate with coupons as aforesaid being surrendered and cancelled.

As to rights of bearers of stock warrants to bearer.

28. The bearer of a stock warrant to bearer shall subject to the provisions of this Act be deemed to be a stockholder of the Company to the full extent. Provided that the bearer of a stock warrant to bearer shall not be qualified in respect of stock specified in the warrant for being a director of the Company.

On what conditions bearers of stock warrants may vote.

29. No person shall as bearer of a stock warrant to bearer be entitled to attend or vote or exercise in respect thereof any of the rights of a stockholder at any meeting of the Company or to sign any requisition for or aid in calling any extraordinary meeting unless three days at least before the date appointed for the meeting in the first case and unless before the requisition is lodged at the principal office of the Company in the second case he shall have deposited the stock warrant to bearer at the principal office of the Company or such other place as the directors appoint together with a statement in writing of his name and address and unless the stock warrant to bearer shall remain so deposited until after the meeting or any adjournment thereof has been held. The names of more than one as joint holders of a stock warrant shall not be received.

Certificates of deposit.

30. There shall be delivered to the person so depositing a stock warrant to bearer a certificate stating his name and address and the amount of stock specified in the stock warrant to bearer so deposited by him and the certificate shall entitle him to attend and vote at any meeting in the same way as if he were a registered stockholder of the Company in respect of the stock specified and upon delivering up the certificate to the Company the stock warrant to bearer in respect whereof it shall have been given shall be returned.

Stock warrants to be produced.

31. No person as bearer of any stock warrant to bearer shall be entitled to exercise any of the rights of a stockholder of the Company (save as herein-before expressly provided in respect of meetings) without producing the warrant and stating his name and address.

As to notices to holders of stock warrants.

32. Any notice or intimation required to be given to stockholders of the Company under the provisions of the Companies Clauses Consolidation Act 1845 and Acts amending the same

may in the case of any bearers of stock warrants to bearer be given by advertising the notice once in two newspapers published in London such advertisements to be inserted within the period (if any) prescribed for the giving of such notice. A.D. 1911.

33. If and so often as any application shall be made to Parliament for an Act affecting the rights of the holders of any class of debenture stock which shall for the time being have been issued by the Company and be outstanding and in respect whereof or any part whereof debenture stock certificates to bearer shall be then outstanding the following provisions shall have effect (that is to say):—

Provision in case of applications to Parliament affecting rights of holders of debenture stock.

(1) In this section the following expressions shall have the following meanings unless repugnant to the context:—

“The debenture stock” means the debenture stock of such class as last aforesaid for the time being issued and outstanding;

“The bearer debenture stock” means such of the debenture stock as shall for the time being be specified in debenture stock certificates to bearer;

“Bearer certificates” means the debenture stock certificates to bearer for the time being issued in respect of the debenture stock or any part thereof and outstanding;

“Bearers” means the bearers for the time being of the bearer certificates and “bearer” means the bearer of a bearer certificate;

“Registered holders” means the registered holders for the time being of any debenture stock;

“Meeting” means a meeting of registered holders and bearers under this section;

“Voting certificate” means a voting certificate issued in pursuance of this section:

(2) Any meeting convened for the purpose of approving any such application to Parliament as aforesaid or any Bill for such Act as aforesaid shall so far as the bearers are concerned be duly convened by advertising the notice convening the same once in two newspapers published in London and once in the

A.D. 1911.

same two newspapers in the next week following the publication of the first advertisement provided the same shall be convened for a date not less than fourteen days or more than thirty days after the last insertion of the advertisement thereof in such two newspapers. It shall also be lawful for but not obligatory on the Company to advertise such notice as last aforesaid in any other newspaper or newspapers either in the United Kingdom or abroad ;

Every advertisement as aforesaid shall state that the bearers may not less than forty-eight hours before the time for holding the meeting or any adjournment thereof deposit at the principal office of the Company their bearer certificates and obtain voting certificates in respect thereof :

(3) At a meeting or any adjournment thereof the bearer of a bearer certificate shall be treated as the legal holder thereof whether such bearer shall or shall not be the owner thereof and for all the purposes of the meeting or any adjournment thereof the bearer of a voting certificate issued under this section in respect of a bearer certificate shall be deemed to be the bearer of such bearer certificate :

(4) Prior to convening a meeting the Company shall make such arrangements as will entitle any bearer who shall not less than forty-eight hours before the time for holding such meeting or any adjournment thereof deposit a bearer certificate at the principal office of the Company to receive from the Company—

(a) a receipt for the bearer certificate so deposited such receipt to be in such form as (subject to the provisions of the next succeeding subsection) will entitle the bearer thereof to have the bearer certificate in respect of which the same was given delivered to him in exchange therefor by the Company whether such bearer be or be not in fact the true owner of the bearer certificate ; and

(b) a voting certificate which receipt and voting certificate shall be signed by the secretary of the Company and shall specify the denoting number of the bearer certificate so deposited and the amount of the debenture stock specified therein

A voting certificate shall not except as provided by subsection (3) of this section confer any title on the holder thereof to the bearer certificate or to the debenture stock referred to therein: A.D. 1911.

- (5) A bearer certificate deposited as last aforesaid shall be deposited subject to (amongst others) the condition that the same shall be retained by the Company until the meeting has been held or abandoned or until the receipt given by the Company therefor and the voting certificate issued by the Company in respect thereof shall be delivered to the Company whichever shall be the earlier.

34. If a stock warrant to bearer or debenture stock certificate to bearer or coupon is lost or destroyed then upon— Loss or destruction of warrant certificate or coupon.

(A) Proof to the satisfaction of the directors of the ownership of such lost or destroyed warrant or certificate or coupon and of the loss or destruction thereof;

(B) Such indemnity to the Company and the directors as the directors deem adequate being given;

(c) Payment of all stamp and other Government duties (if any) payable in respect of the new warrant or certificate or coupon together with a fee of five shillings;

a new stock warrant to bearer or debenture stock certificate to bearer or coupon as the case may be in lieu of the warrant certificate or coupon so lost or destroyed shall be issued by the Company and a due entry of the issue of the new stock warrant to bearer or debenture stock certificate to bearer or coupon shall be made by the secretary in the register of stockholders or register of debenture stockholders as the case may be.

35. A trustee unless authorised by the terms of his trust shall not apply for or hold a stock warrant to bearer or debenture stock certificate to bearer issued under the authority of this Act but nothing in this section shall impose upon the Company any obligation to inquire whether the person applying for a stock warrant to bearer or debenture stock certificate to bearer is or is not a trustee or subject them to any liability in the event of their issuing to a trustee a stock warrant to bearer or debenture stock certificate to bearer. Trustees unless expressly authorised not empowered to hold bearer securities.

36. A copy of the sections of this Act of which the marginal notes are "On what conditions bearers of stock warrants may vote" "Certificates of deposit" "Stock warrants to be produced" Endorsement of provisions on warrants and certi-

A.D. 1911. "As to notices to holders of stock warrants" and "Registration of stock or debenture stock on surrender of warrant or certificate" shall be endorsed on every stock warrant to bearer and a copy of the sections of this Act of which the marginal notes are "Registration of stock or debenture stock on surrender of warrant or certificate" and "Provision in case of applications to Parliament affecting rights of holders of debenture stock" shall be endorsed on every debenture stock certificate to bearer which shall be issued by the Company.

Amendment
of section 30
of Act of
1905.

37. So much of section 30 of the Act of 1905 as restricts the Company from borrowing on mortgage any sum or sums not exceeding in the whole one-third part of the amount of the additional capital of eight hundred thousand pounds by section 23 of the Act of 1905 authorised to be raised until shares or stock as therein mentioned for the whole of the said additional capital shall have been issued and a sum equal to one half of such shares or stock shall have been paid in respect of such shares or stock is hereby repealed and in substitution therefor the following provisions shall apply and have effect (that is to say):—

The Company in respect of the said additional capital of eight hundred thousand pounds so authorised to be raised as aforesaid may from time to time borrow on mortgage of their undertaking such sums as they think fit not exceeding in the whole the sum of two hundred and sixty-six thousand six hundred and sixty-six pounds at the times and in the manner herein-after provided (that is to say) when the sum of seventy-five thousand pounds in respect of such additional capital shall have been bonâ fide paid up and certified as herein-after mentioned the Company may borrow on mortgage any sum of money not exceeding twenty-five thousand pounds and a like additional sum of twenty-five thousand pounds when each further sum of seventy-five thousand pounds shall have been so bonâ fide paid up and certified up to seven hundred and fifty thousand pounds and an additional sum of sixteen thousand six hundred and sixty-six pounds when the remaining fifty thousand pounds of such additional capital of eight hundred thousand pounds shall have been so bonâ fide paid up and certified but no such borrowing powers shall be exercised by the Company until they shall prove to the justice who is to certify under section 40 of the Companies Clauses Consolidation

Act 1845 before he so certifies that shares or stock for A.D. 1911.
 raising such additional capital have or has been bonâ fide
 paid up to the extent of seventy-five thousand pounds
 in respect of each of the said ten sums of twenty-five
 thousand pounds intended to be borrowed and to the
 extent of fifty thousand pounds in respect of the said
 sum of sixteen thousand six hundred and sixty-six pounds
 intended to be borrowed and upon production to such
 justice of the books of the Company and of such other
 evidence as he shall think sufficient he shall grant a
 certificate that the proofs aforesaid have been given
 which certificate shall be sufficient evidence thereof.

38. The Company may apply to all or any of the purposes Power to
apply funds.
 of this Act to which capital is properly applicable any moneys
 from time to time raised by them and which are not by any of
 the Acts relating to the Company made applicable to any special
 purpose or which being made so applicable are not required for
 the special purpose.

PART IV.

MISCELLANEOUS.

39. The Company shall not out of any money by this Act Deposits for
future Bills
not to be
paid out of
capital.
 authorised to be raised pay or deposit any sum which by any
 standing order of either House of Parliament now or hereafter
 in force may be required to be deposited in respect of any
 application to Parliament for the purpose of obtaining an Act
 authorising the Company to construct any other railway or to
 execute any other work or undertaking.

40. Nothing in this Act contained shall exempt the Com- Provision as
to general
Railway
Acts.
 pany or their railway from the provisions of any general Act
 relating to railways or the better and more impartial audit of
 the accounts of railway companies passed before or after the
 commencement of this Act or from any future revision or altera-
 tion under the authority of Parliament of the maximum rates of
 fares and charges or of the rates for small parcels authorised to
 be taken by the Company.

41. All costs charges and expenses preliminary to and of Costs of Act.
 and incidental to the preparing applying for obtaining and passing
 of this Act or otherwise in relation thereto shall be paid by the
 Company.

A.D. 1911. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

DESCRIBING LANDS BUILDINGS AND PREMISES OF WHICH
PORTIONS ONLY MAY BE TAKEN.

Parish or other Area.	Numbers on deposited Plans.
Parish of St. James Clerkenwell and metropolitan borough of Finsbury.	1 2 3 4 5 6 7 8 9 10 11 12 13 14 15 16 and 17.
Parish and metropolitan borough of St. Marylebone.	2 3 4 5 6 7 8 9 and 10.

THE SECOND SCHEDULE.

DESCRIBING LANDS IN RESPECT OF WHICH EASEMENTS
MAY BE TAKEN.

Parish or other Area.	Numbers on deposited Plans.
Parish of St. James Clerkenwell and metropolitan borough of Finsbury.	1 2 3 4 5 6 7 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 and 27.
Parish and metropolitan borough of St. Marylebone.	1 2 3 4 5 6 7 8 9 10 and 11.

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